

		“ ‘The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations.]’ [Citation.]” (<i>Leighton v. Forster</i> (2017) 8 Cal.App.5th 467, 491; accord, <i>Zurich American Ins. Co. of Illinois v. World Private Security, Inc.</i> (C.D. Cal., July 17, 2020, No. CV-19-6595-MWF (KSX)) 2020 WL 5415395, at *7.) Plaintiff met its initial burden of production. It presents evidence that, on December 31, 2015, the parties entered into the U.S. Distributorship Agreement, wherein Plaintiff sold products on credit to Defendant Purcell-Murray Company, Inc. This Agreement evinces prior transactions between the parties, which establishes the relationship of Plaintiff as the creditor, and of Defendant as the debtor. This Agreement also provides evidence the parties had an agreement as to the amounts due from Defendant, as well as Defendant’s promise to pay the amounts due. (Lin Declaration, ¶¶ 5-7, 12; Exhibit 1 to Lin Declaration.) While Plaintiff performed its obligations under the Agreement, Defendant breached same by defaulting on its payment obligations, resulting in total damages of \$3,464,197.90. (Lin Declaration, ¶¶ 5-12; Exhibits 1-3 to Lin Declaration.) By not opposing the Motion for Summary Judgment, Defendant did not meet its own burden of production to make a prima facie showing of the existence of a triable issue of material fact. Given the foregoing, Plaintiff’s Motion for Summary Judgment is granted. Moving party is ordered to give notice.
14	Onesource Distributors, LLC vs. Pheifer	TENTATIVE RULING: <u>Motion to Amend Judgment</u> Plaintiff OneSource Distributors, LLC, moves to amend judgment entered 04/08/2026 against Defendants Eric Pheifer and Katherine Fertig (collectively, the “Pheifer Parties”). For the following reasons, the motion is DENIED.

		Plaintiff moves pursuant to Code of Civil Procedure section 187 to amend the judgment entered 04/08/2026, to include an earlier award of attorney’s fees. Code of Civil Procedure section 187 provides that: “When jurisdiction is . . . conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this Code.” Plaintiff does not justify its requested relief. On 02/04/2026, this court issued an order awarding Plaintiff attorney’s fees in the amount of \$5,215.00. (ROA # 181.) That order has the force and effect of a money judgment and is enforceable through execution. (<i>See</i> Code Civ. Proc. §§ 680.230 [defining “judgment” to mean “a judgment, order, or decree entered in a court of this state”], 680.270 [defining “money judgment” to mean “that part of a judgment that requires the payment of money”]; <i>see, e.g., Jones v. Otero</i> (1984) 156 Cal.App.3d 754, 759 [holding an order imposing monetary sanctions may be enforced under the EJI].) Thus, the court need not take any additional action to carry out the effect of that 02/04/2026 order awarding fees. Amending the 04/08/2026 judgment to include the fee award is gratuitous and would create two separately enforceable judgments for the same fee award. For these reasons, the court will deny Plaintiff’s motion to amend judgment. Defendants to give notice.
15		
16		
17		
18		